

applicant or allowing the applicant to be contacted'. The requirement for information identifying the applicant was previously contained in Art. 80(c) EPC 1973.

In J.25/86 (OJ 1987, 475) it was pointed out that the requirement under Art. 80(c) EPC 1973 for "information identifying the applicant" was to be considered as having been met whenever it was possible to establish beyond reasonable doubt the identity of the applicant on the basis of all data contained in the documents filed by the applicant or his representative.

As noted in this chapter IV.A.4., under Art. 60(3) EPC the EPO assumes the applicant to be entitled to the European patent.

In T.948/10 the EPO was wrongly informed that the applicant company's name had changed, and amended it accordingly. As neither the appellant's representative nor the examining division/Client Data Registration department had had any reason to believe that the party to the proceedings was anyone other than the original applicant, the board found that this error did not invalidate the procedural steps taken by the applicant before the first-instance departments ("falsa demonstratio non nocet"), and that the EPO should correct the mistake itself.

5.2.2 Correction of designation of applicant (Rule 139 EPC)

Under R. 139 EPC linguistic errors, errors of transcription and mistakes in any document filed with the EPO may be corrected on request. The decisions below consider the application of the EPC 1973 (R. 88 EPC 1973, which was not amended in substance). On R. 40(1)(b) EPC, see in this chapter IV.A.5.2.1).

In J.7/80 (OJ 1981, 137), the board held that if the wrong applicant was named in an application and the wrong applicant and the correct applicant were both companies forming part of the same group of companies then the mistake could be corrected under R. 88 EPC 1973, if there was sufficient evidence to support the request for correction.

Following J.7/80 (OJ 1981, 137) it was held in J.18/93 (OJ 1997, 326), J.17/96 and J.31/96 that a correction substituting the name of the applicant was allowable under R. 88 EPC 1973 if there was sufficient evidence to support the request for correction. This rule was not in conflict with the provisions of Art. 61 EPC 1973, which concerned ownership disputes. R. 88, second sentence, EPC 1973 was not applicable. It was only necessary to verify whether there was sufficient evidence to support the request under R. 88 EPC 1973 for correction of the applicant's name; where the correction of a mistake was requested and R. 88, second sentence, EPC 1973 was not applicable, the EPO had to be satisfied that a mistake had been made, what the mistake was and what the correction should be. In J.8/80 (OJ 1980, 293), the board added that, in order to avoid any abuse, the burden of proving the facts had to be a heavy one.

A correction under R. 88, first sentence, EPC 1973 was retroactive to the original date of filing (J.3/91, OJ 1994, 365; J.2/92, OJ 1994, 375) and the application was restored to the

form which it should have taken on the filing date if the error had not been made (J 4/85, OJ 1986, 205).

In J 17/97 and J 18/97 the representative had filed the parent application in the name of Int. Inc., but the divisional application in the name of S.medica. Due to the different identities of the applicants, the Receiving Section had refused to treat the application as a divisional application. In its decisions, the Legal Board did not allow the request for correction to replace the name of the applicant of the divisional application with the name of the applicant of the parent application pursuant to R. 88 EPC 1973 because the appellant had not proved that the divisional application had been filed in error by S.medica and should have been filed by Int. Inc.

5.3. Legal effect of accordance of a date of filing

According to T 1409/05 (OJ 2007, 113) a legally effective – in the terminology of the EPC, an accorded – filing date had several different legal effects. Amongst others:

(a) it marked the beginning of the pendency of a European patent application; Art. 80 EPC 1973 in conjunction with Art. 90(1)(a), 90(2) EPC 1973;

(b) it marked the notional date on which the applicant formally claimed to have deposited his invention with the EPO; and

(c) the filing date defined the state of the art and hence the extent of search and examination, for the purposes of Art. 54(2) and (3) EPC 1973.

The legal effects (a) to (c) ensued immediately when the filing date was accorded. Further legal effects of the filing date unfolded upon publication of the patent application:

(d) It marked the date which counted as the filing date so as to affect other applications for the purposes of Art. 54(3) EPC 1973.

The filing date unfolded still further legal effects on grant:

(e) it marked the starting date for the granted protection envisaged by Art. 64(1) EPC 1973, cf Art. 63(1) EPC 1973; and

(f) the filing date marked the legally confirmed date by which the applicant had deposited the invention for which protection was granted, and as such, recognised the claim of (b).

The board went on to point out that the difference between the legally relevant dates (a) to (f) was clearly shown by the fact that logically they did not need to coincide, although this was the core assumption in the patent granting system established by the EPC.

A filing date for a "normal" application was accorded as soon as the requirements of Art. 80 EPC 1973 were met – apart from other formal issues, such as language etc. If an application was deemed to have been accorded a filing date, an application came into

existence. In other words, there was a pending application, and the legal effects (a) to (c) above were obtained.

Conversely, a pending application had always to be deemed to have been accorded a filing date. It was true that the EPC used the notion of an application that was not deemed to have been accorded a filing date; cf Art. 90(2) EPC 1973. However, such a purported application would legally never be pending, as there would be no application; cf Art. 90(2) EPC 1973. Such a purported application was neither searched nor examined, and neither filing, search, examination nor annual fees needed to be paid thereafter. A purported application which did not have a filing date simply did not exist as an application *sensu stricto* for the purposes of the EPC. This showed that a pending application without a filing date would be in a legal limbo. In other words, the notion of according a filing date was synonymous with the legal recognition of the existence of a pending European patent application.

5.4. Subsequent filing of missing parts of the description or missing drawings (Rule 56 EPC)

5.4.1 Legal provisions

If the examination under Art. 90 EPC to determine whether the application satisfies the requirements for the accordance of a date of filing reveals that parts of the description, or drawings, appear to be missing, the EPO invites the applicant to file the missing parts within two months (R. 56(1) EPC). The rule's counterpart under the EPC 1973, R. 43 EPC 1973 referred only to missing drawings. Thus, in J 7/97, under the EPC 1973, where a European patent application had been filed with the EPO by fax, but one page of the description was missing, this was not considered an 'obvious error' and a filing date was granted for the application but omitting the page which was not faxed.

Where the applicant files missing parts of the description or missing drawings within two months of the date of filing or of a communication by the EPO inviting him to file the missing parts, the application is re-dated to the date on which the missing parts were filed. However, if the application claims priority, the missing parts of the description or the missing drawings are completely contained in the earlier application and all the requirements of R. 56(3) EPC are fulfilled, the application is not re-dated but retains the date on which the requirements laid down in R. 40(1) EPC were fulfilled (R. 56(3) EPC).

R. 56 EPC applies only to applications filed after the entry into force of EPC 2000 (J 3/06, OJ 2009, 170). According to the Legal Board, applications filed before 13 December 2007 can be seen to be subject to EPC 2000 as regards the applicability of the Implementing Regulations when the article corresponding to the rule in question also applies to patent applications filed prior to 13 December 2007 under Article 1 of the Administrative Council's decision of 28 June 2001. However, a rule in the Implementing Regulations can be assumed to apply to a particular EPC 2000 article when it puts a more detailed construction on that article, in keeping with the purpose of "implementing" the EPC. This is not true of the relationship between Art. 90 and R. 56 EPC because R. 56 EPC does not elucidate Art. 90 EPC. In the context of the system as a whole, R. 56 EPC relates to

Art. 80 EPC (filing date), which is not in the catalogue of provisions stated to be also applicable to pending procedures as soon as EPC 2000 was to enter into force. Consequently, the rules relating to it do not apply either.

In T 2166/10 the patent proprietor filed an appeal against the decision of the opposition division revoking his patent, which had been granted on the basis of a Euro-PCT application. Some of the pages of the description had been missing from the original application and the opposition division held that only the originally filed pages were entitled to the international filing date. The subject-matter as granted consequently extended beyond the content of the application as filed.

In the board's judgment, there was no doubt that the preliminary examination and the patent in suit were partly based on new description pages which had been submitted in the course of the international preliminary examination procedure by way of amendment and which were missing from the application as originally filed. The applicant had never raised the issue of the missing pages or requested a correction of the filing date (cf. J 3/00). Nor did the applicant subsequently file a request for correction of an error in the decision to grant. The board therefore concluded that the opposition division was correct when it held that the application as filed therefore did not include the missing pages of the description.

5.4.2 Interpretation of Rule 56 EPC

According to J 27/10, the same interpretation is to be given to the term "parts of the description ... appear to be missing" in R. 56(1), first sentence, EPC as to the term "missing parts of the description" in the subsequent paragraphs of R. 56 EPC for deciding if a part is missing from the description. The term "description" in "missing parts of the description" in R. 56 EPC refers to the description which was originally filed in order to obtain a filing date and not to any other description. The incomplete originally filed description is to be completed by the missing parts which must be added to the already filed text of the description. Thus an interpretation of R. 56 EPC that some, or all, of the description that was originally filed in order to obtain a filing date could be amended, replaced or deleted is incorrect (see also T 1963/17).

In J 15/12 the board made it clear, with reference to J 27/10, that R. 56 EPC could also not be used to replace drawings. R. 56(1), first sentence, EPC was confined to drawings referred to in the description or claims but which appeared to be missing. In J 12/14 the board stated that the filing of drawings where the re-production of the figures is of low visual quality cannot be remedied by R. 56 EPC.

In J 2/12 the Legal Board found that where (a) the description as filed with an application includes references to numbered drawings and (b) drawings with corresponding numbering are also filed with the application, different drawings may nevertheless be filed later under R. 56 EPC as "missing drawings" if it can be established without having to apply technical knowledge that the drawings originally filed with the application are not the drawings referred to in the description and that the later-filed drawings are the drawings referred to in the description. In the case at issue, it was immediately apparent that the

figures referred to in the description were not the figures as originally filed. In other cases it might be that such a conclusion could not be reached so readily, but as it was so clear in this case, the Legal Board did not have to consider where in general the dividing line should be drawn.

5.4.3 Whether to apply R. 56 EPC or R. 139 EPC

The decisions below consider the application of the equivalent rules under the EPC 1973:

- R. 43 EPC 1973 (now R. 56 EPC), which, however, referred only to missing drawings; and
- R. 88 EPC 1973 (now R. 139 EPC), which provides, inter alia, that mistakes in any document filed with the EPO may be corrected on request. However, if the request concerns, inter alia, the description or drawings, the correction must be obvious in the sense that it is immediately evident that nothing else would have been intended than what is offered as the correction.

In J. 19/80 (OJ 1981, 65) it was held that if a **part** of a drawing was missing, the missing part was not to be considered as a missing drawing for the purposes of R. 43 EPC 1973; the whole figure was to be considered as an incorrect drawing. The correction of drawings was dealt with in R. 88 EPC 1973. Moreover, the evidence required to support a request for correction of a drawing by adding a missing part had to be unambiguous. However, according to G. 3/89 and G. 11/91 (OJ 1993, 117 and 125), the parts of a European patent application or of a European patent relating to the disclosure (the description, claims and drawings) might be corrected under R. 88, second sentence, EPC 1973 only within the limits of what a skilled person would have derived directly and unambiguously, using common general knowledge, and seen objectively and relative to the date of filing, from the whole of these documents as filed. Such a correction was of a strictly declaratory nature and thus did not infringe the prohibition of extension under Art. 123(2) EPC 1973. Documents not meeting this condition might not be used for a correction under R. 88, second sentence, EPC 1973 even if they were filed together with the European patent application. These included, inter alia, priority documents, the abstract and the like.

In the explanatory remarks to EPC 2000 in CA/PL/06, it was explained that R. 56(1) EPC is not intended to apply to missing **parts** of the drawings. If the Receiving Section notes that a part of a drawing is missing, it will treat the application, for the purpose of R. 56 EPC, as if the complete drawing were missing and will invite the applicant to re-submit the complete drawing.

According to J. 1/82 (OJ 1982, 293), if a sheet including two complete figures was late-filed, these could not be considered incorrect drawings for the purposes of R. 88 EPC 1973 – the late filing of one or more complete figures was dealt with in R. 43 EPC 1973.